

## A. Parasurama Reddiar vs Arunachala Reddiar And Ors. on 4 August, 1998

**Equivalent citations: AIR 1999 MADRAS 143, (1998) 3 MAD LW 753, (1999) 2 MARRILJ 306, (1999) MATLR 506**

### JUDGMENT

K.P. Sivasubramaniam, J.

1. This Second Appeal is directed against the judgment of the learned District Judge, Tirunelveli, in A.S. No. 119 of 1984 dated 13-3-1985 partly reversing the judgment of the learned Subordinate Judge, Tuticorin, in O. S. No. 217 of 1979. The plaintiff in the suit is the appellant in the above Second Appeal.

2. The following is the genealogy tree of the parties :--

ARUNACHALA REDAIAR | \_\_\_\_\_ | | 1st  
Defendant Plaintiff (1st respondent) (Appellant) |  
\_\_\_\_\_| | Valliammal Guruvammal  
(1st wife) (2nd wife) | Ramasami (5th defendant)

3. Arunachala Reddiar, shown in the above genealogy tree, who died in January, 1962, executed a Will on 4-7-1958, in which suit properties described as Schedule I and Schedule II were dealt with in the following manner and the status and names of the parties in the present suit are given in brackets.

(Vernacular matter omitted.....Ed.) Regarding the plaint Schedule II properties the disposition in that Will is as follows :--

(Vernacular matter omitted.....Ed.)

4. Valliammal, the first wife of the first defendant is still alive. But the first defendant married Guruvammal as his second wife and Ramasami, 5th defendant is the first defendant's son through Guruvammal. Under various sale deeds executed during the years 1978-79, the first defendant had sold both the properties to the second and fourth defendants.

5. According to the plaintiff/appellant, the first defendant's marriage with Valliammal was subsisting even though they were living separately and as such there was no valid marriage between the first defendant and Guruvammal. Therefore, the fifth defendant was not a legitimate son of the first defendant. Hence as per the terms of the Will, neither the first defendant was competent to sell

either of the properties, nor can, fifth defendant succeed to any one of the properties. As far as the first schedule property is concerned, there being no legitimate male issue he was entitled to the property. As far as the second schedule property is concerned, as there was no possibility of Valliammal begetting any child, and thereafter Valliammal had also acknowledging that she cannot have any issue hereafter, had executed a release deed of her life interest in the schedule property in favour of the plaintiff. In the said circumstances, the plaintiff prayed for a decree declaring that the plaintiff was entitled to the first schedule property as vested remainder and for recovery of possession after the lifetime of the first defendant free from encumbrances and for a decree for declaration of the title of the plaintiff to the second schedule property and for a permanent injunction restraining the third and fourth defendants from interfering with the enjoyment of the second schedule property by the plaintiff.

6. The first defendant in his written statement, while denying the claims of the plaintiff, would contend that his marriage with Guruvammal was a legal marriage after valid divorce from Valliammal and hence, the fifth defendant was his legitimate son. The question of any heir to the first defendant would arise only after the death of the first defendant and hence the suit was premature. Male heir as indicated in the Will need not be a son actually born. The allegations against Guruvammal were denied. According to the first defendant, sales in favour of Defendants 2 to 4 cannot be questioned in any manner and they are bona fide purchasers. The recitals in the sale deed were true and the plaintiff was estopped from questioning the same. The plaintiff cannot claim to have any vested remainder, which if at all, is spes successionis. The plaintiff's interpretation of the Will was not correct. Valliammal could not be heard to say that she can have no children and hence she cannot execute any release deed. The plaintiff was not in possession of the property and hence not entitled to any injunction. A written statement was filed by Guruvammal representing the fifth defendant/minor. She claims to be a necessary party who should have been impleaded as a party, to the suit. She claims to be the legally married wife of the first defendant and that she was not aware of the marriage of Valliammal with the first defendant. The sales in favour of defendants 2 to 4 were bona fide and cannot be questioned.

7. Defendants 2 and 4 filed written statement reiterating the contentions of the first defendant and the third defendant adopted the said written statement.

8. A reply statement was filed by the plaintiff disputing the legality of the alleged marriage between the first defendant and Guruvammal.

9. The trial Court found that it was not necessary to decide as to whether the alleged divorce of Valliammal by the first defendant was true or not and as to whether the fifth defendant was the legitimate son of the first defendant or not; but held that since the Will did not specify that the heir should be legitimate, the fifth defendant should be considered as a legal heir of the first defendant, and therefore, the plaintiff was not entitled to any relief in respect of the first schedule property. As regards the second schedule, release deed by Valliammal was upheld and hence the suit was decreed with reference to the second schedule alone. However, on appeal, the appellate Court confirmed the verdict of the trial Court with reference to the first schedule property, but reversed the decree in respect of the second schedule property, holding that whether Valliammal would have any male

issue or not, could be decided only on the death of Valliammal and hence the claim over the second schedule property was also premature and dismissed the suit in entirety. Hence the above Second Appeal.

10. It is unfortunate to find that both the Courts below have revelled in rendering totally illegal and perverse findings resulting in giving a seal of approval over a series of illegal and void transactions brought forth fraudulently.

11. It will be convenient to deal with the plaintiffs claim over the second schedule property first, since the decision over the said issue falls within a narrow compass. The recital in the Will dealing with the second schedule property, stipulates that the property was bequeathed to Valliammal for her lifetime without any power of alienation and that if she gives birth to any male heir, such heir shall inherit the property absolutely and if not, the property would revert to the plaintiff absolutely. It is very obvious that as far as the said item of property is concerned, the first defendant has absolutely no control or rights over the property and it is rather surprising that the first defendant arrogates himself as an absolute owner of the property and sells it to third parties. The lower appellate Court which took pains to hold that whether Valliammal will bear an issue or not, could be decided on her death only, did not take sufficient care to adjudicate as to whether the first defendant had any business to deal with the property or not. Even assuming for argument, that the release deed executed by Valliammal in favour of the plaintiff cannot be acted upon as a prospective remainder-man, the plaintiff is certainly entitled to object to the alienation by the first defendant, which has absolutely no legal basis at all.

12. As far as the release deed executed by Valliammal is concerned, Ex. A.7 is a registered document and the only person who can question it is Valliammal herself. The execution of the document has not been found against. She has plainly stated in the document itself that she has passed her prime age (vernacular matter omitted--Ed) and she had no heir of her own and also that she found it impossible for her to carry on agricultural operations or to use the property in any manner and therefore, she was relinquishing her absolute right. Without considering any of these issues and at any rate as to whether the first defendant had any right to deal with the said item, at one stroke, the learned appellate Judge had rejected the plaintiffs claim on the only reason that the issue whether Valliammal could have any heir or not could be decided only on her death. An answer given by the plaintiff in the cross-examination that the possibility of the first defendant and Valliammal joining together again cannot be ruled out, is strongly relied upon by the learned appellate Judge, totally ignoring the positive evidence of the first defendant himself to the effect that there was absolutely no possibility of himself and Valliammal joining together or giving birth to any child. There is absolutely no justification for the lower appellate Court to have adopted such perverse reasonings against reality and with the result having ratified a totally fraudulent alienation by the first defendant. He should have at least held that the alienation by the first defendant will not bind the plaintiff.

13. Therefore, as far as the second schedule property is concerned, the plaintiff is entitled to succeed and the findings of the lower appellate Court in the said context are set aside.

14. As far as the plaintiffs claim over the first schedule property is concerned, the trial Court instead of considering the implications arising out of Section 16(3) of the Hindu Marriage Act, 1955, (hereinafter called "the Act") had chosen to give reasons which are totally unwarranted. Strangely, the trial Court would say that the clause in the Will did not rule out an illegitimate male issue since the recital refers only to a male issue. The appellate Court though it had considered the effect of Section 16 of the Act, in my opinion, had committed an error in its interpretation of the said provision. It may be pointed out here that both the Courts have concurrently held that the first defendant had not established the termination of his first marriage with Valliammal and consequently Guruvammal was not a legally wedded wife of the first defendant and hence fifth defendant cannot be considered to be a legitimate child of the first defendant. In the said background Section 16 of the Act, extracted below, requires consideration.

"16. Legitimacy of children of void and voidable marriages -- (1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976, and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in Sub-section (1) or Sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possession or acquiring any such rights by reason of his not being the legitimate child of his parents."

Section 16(3) of the Act in particular falls for consideration in the present Second Appeal. According to learned counsel for the appellant, the expression "any rights in the property of any person other than parents" as occurring in Section 16(3) of the Act would only mean that the rights of an illegitimate child would be restricted only to the property belonging to the parents of the child alone and in respect of the property belonging to others over which the parents may have a claim by virtue of their coparcenary rights of inheritance cannot be inherited by the illegitimate child. As such, according to the learned counsel for the appellant, the property in question belong to the grand-father of the fifth defendant and therefore, the fifth defendant was not entitled to succeed to the same.

15. A Division Bench of this Court in a judgment reported in (1976) 89 Mad LW 706 (Sivagnanavadivu Nachiar v. Krishnakanthan) while dealing with the proviso to Section 16 of the Act as it stood prior to the amendment (corresponding to Section 16(3) of the Act) held that the proviso forbids conferment of any right on the legitimized child in the property of any person other than that of the parents. As a result, it was held that such a child would be entitled only to the proportionate share of the father's share in the joint family property but cannot claim a share in the joint family property along with the legitimate sons. In (Perumal Gounder v. Pachayappan) Ratnam, J. as he then was, while dealing with a suit for partition at the instance of illegitimate son, following the judgment of a Division Bench cited above, held that he was not entitled to ask for partition and that at best may be entitled to the rights in the properties of his father, after his death.

16. A learned single Judge of the Bombay High Court in a judgment, (Laxmibai v. Limbabai) while dealing with a claim of illegitimate offspring in respect of the property inherited by the father from his mother, held that by virtue of Section 16 of the Act, illegitimate offspring would be covered under class I heirs of the father along with his (father's) widow. But this judgment was not agreeable to a Division Bench of the same High Court which held in (Shantaram v. Dagubai) that the right of a child of a void marriage was only referable to the separate property of the parents and not coparcenary property in which the parent has a share. The Division Bench expressed that the question of succession under Section 8 of the Hindu Succession Act would arise only after the death of the parents and not during the lifetime of the parents.

17. Mr. T.M. Hariharan, learned counsel for the respondents, would however contend that the property referred to in Section 16(3) of the Act, would concern only when the property inherited is self-acquired property of the parents, but did not concern the property acquired by them under a Will. According to him, bequest was not inheritance. For this he would rely on a judgment of M. Srinivasan, J. as he then was, reported in (1990) 106 Mad LW 598, (Komalavalli Ammal v. T.A.S. Krishnamachari). In the said judgment it was held that in terms of Section 15(2) of Hindu Succession Act, a Hindu female dying intestate cannot be said to inherit a property from her father or mother if she had obtained the property under a Will and that the word "inherited" would not include devolution by a Will. In this context what the learned counsel had overlooked is that firstly, Section 16(3) of the Act does not use the word "inherited" and as such the interpretation sought to be put forth on the said expression does not arise. Secondly, we are concerned with succession as would arise in respect of the properties of the first defendant who happens to be a male who will be governed only by Section 8 of the Hindu Succession Act and not Section 15 of the Act which deals with intestate succession of woman. There is no such non obstante clause in Section 8 of the Act which would correspond with Section 15(2) of the said Act and no such distinction is made between property inherited or otherwise.

18. The primary question in this case is as to whether the fifth defendant can be treated as a male heir within the expectation of the testator and whether the observation of the trial Court that it would include illegitimate sons also could be sustained. The relevant portion of the Will reads as it is true that Section 100 of the Indian Succession Act which holds that in the absence of contrary intention the word 'child', 'son' 'daughter' etc. should be understood only as denoting a legitimate person, is not directly made applicable to Hindu Law. Yet the same principle is recognised in Hindu

Law also - vide Page 473 of Mantha Ramamurthi's Wills - Fourth Edition. Section 27 of the Indian Succession Act prohibits condition in bequest contrary to law or to morality and this provision is applicable to Hindu Law. As early as in the year 1872 itself when there were no laws preventing or penalising bigamous or polygamous marriages, the Privy Council in 1 Indian Appeal (Supp) 47 : 9 Bengal Law Reports 377 (Jatindra Mohan Tagore v. Ganendra Mohan Tagore) held that among Hindus also, inheritance created by gift or will, in so far as it is inconsistent with the general law of inheritance, would be void.

19. In another classic judgment of a Division Bench of this Court in Maharaja of Venkatagiri v. Raja Rajeswara Rao, ILR (1939) Madras 622 : (AIR 1939 Madras 614) while considering the words "purusha santhathi" held that the words used in their widest sense would cover illegitimate descendants also, however held that on interpretation of the clauses in the deed that it could have never been contemplated that an illegitimate son should ascend "gaddi" - family crown and that such cannot be the intention of the testator. In the concurrent judgment by Krishnaswamy Iyengar, J., the learned Judge had analysed the rival claims of Hindu Law and Hindu sentiments and would uphold the needs of a civilised community in the following words :--

"Can it be said that the Hindu law of illegitimate succession furnishes in this case a clue to the intention behind the expression purusha santhathi? Where Hindu Law and Hindu sentiment coincide, the law would of course be of help. Where they diverge, however, it is the Hindu sentiment that will rule even to the exclusion of the law. The truth of the matter is that there can be little room for doubt that the ordinary notions of a Hindu towards irregular unions and the issue of such unions are not different from those of any other civilised community. There is no denying it that the Hindu religion does not countenance extra-marital relations, and the Hindu law itself looks down with disfavour on illegitimate children, assigning to them only a subordinate rank among the sudras and denying heirship altogether among the superior castes. It is therefore to the sentiments generally prevalent in the society to which the executant belongs, more than to the law, that regard should be had in questions of this kind. Illicit relations are, until callousness overtakes the parties, carried on on the sly and rarely if ever owned, much less paraded in the public eye. The higher the social rank, the greater the care with which the veil is thrown over them. It is one thing to provide for the issue of a lapse that has occurred. Duty and honour may dictate it. Love and affection, more especially if there be no legitimate children, may even prompt it. But I refuse to believe that a member of the Hindu community nobleman or commoner, would contemplate with equanimity the possibility of future lapses either in himself or in his descendants and sit down on a solemn occasion to enact a scheme of succession to provide for future illegitimate descendants."

20. The above two judgments were rendered at the time when there were no laws prohibiting bigamous marriages. Since then there have been revolutionary changes in law, such as the Madras Hindu (Bigamy Prevention of Divorce) Act, 1949 etc. finally culminating in the codification of Hindu Marriage Act, 1955 and Hindu Succession Act, 1956. In the present case, bequest was made in the

year 1958 and the propounder apart from his natural familial sentiment is also presumed to have been aware of the legal limitations, in the light of succession and inheritance and he would not have definitely visualised the property being inherited by anyone born outside wedlock. The first defendant himself had admitted in the oral evidence that he was aware that his father had executed the will with the motive that the property should not go out of the family. The very stipulation in the Will that in the absence of a male heir it should revert back to the plaintiff would clearly show the intention of the testator being that the property should not go out of his family. In the interpretation of a Will what is most important is testator's intention. Section 87 of the Indian Succession Act is as follows :--

"87. Testator's intention to be effectuated as far as possible -- The intention of the testator shall not be set aside because it cannot take effect to the full extent, but effect is to be given to it as far as possible." ,

21. The Supreme Court in *Gnambal Animal v. Raju Ayyar*, dealing with the interpretation of the Wills held as follows :--

"The cardinal maxim to be observed by Courts in construing a will is to endeavour to ascertain the intentions of the testator. This intention has to be gathered primarily from the language of the document which is to be read as a whole without indulging in any conjecture or speculation as to what the testator would have done if he had been better informed or better advised."

22. The Supreme Court went further to quote from the judgment of the Privy Council in *Venkata Narasimha v. Parthasarathy*, (1913) 41 Ind App 51, holding that the Court should put itself in the testator's armchair and it was the duty of the Court to carry out the intention as expressed and none other and that the Court will not be justified in adding to the testamentary dispositions. In the present case, both the Courts had ventured into an adventurous interpretation substituting testator's intention with their own understanding of the law of succession and inheritance holding that an illegitimate son was also entitled to succeed to the estate of the parent and that therefore, the fifth defendant would not be barred from inheriting the first schedule property. What they have ignored is that Hindu law of succession does not envisage a share in favour of illegitimate issue either under Section 8 or Section 15 of the Hindu Succession Act subject only to the definition of "related" in Section 3(1)(j) of the Act. Section 16 of the Hindu Marriage Act is in the nature of an exception to the general law of succession. While Section 16(1) aims at removing the stigma on an illegitimate issue, Section 16(3) aims at binding only the personal property of the parent for his acts of indiscretion. The very underlying object of Section 16(3) of the Act to keep out the assets which did not belong to the parent as his own, had been lost sight by both the Courts.

23. It is also to be borne in mind that in this case on facts also there is no property which could be stated to belong to the parent (1st defendant) since what was granted to him was only a life interest with absolute restriction of alienation. Any right in fifth defendant to inherit the property of the first defendant would arise only on the death of the first defendant.

24. On the facts of the case, less said about the case of the first defendant is the better. His written statement is a specimen of irresponsible pleadings both on facts and in law.

25. He would plead that "Male Varis" need not necessarily be a son actually born. A "Varis" is used in the sense of heir and not male issue ..... "The plaintiff has not sought any declaration of his status as son .....She (Valliammal) is not the only wife. The plaintiff cannot be heard to say Valliammal can have no children and cann't bear any ....." I do not intend to comment on the inaccurate language or grammar. But the tenor of the submissions of the first defendant are totally jarring. In his evidence he admits that Valliammal was more than 40 years of age and that there was absolutely no possibility of his living with Valliammal again or to have any child through her. He would also admit that he is fully aware of the terms of the Will. He admits that his father had executed the Will with the idea that the property should not go out of the family and that as per the Will he cannot create any encumbrance, but he had sold both the properties.

26. As regards the claim that the sales in favour of defendants 2 to 4 were bona fide, only the fourth defendant had examined himself as a witness and he would state that he was aware of the terms of the will and the restricted life estate of the first defendant and that he had purchased the litigation (vernacular matter omitted....Ed.). What is most surprising is that two Courts found in favour of the defendants.

27. With the result, in respect of the first schedule property also the plaintiff is entitled to succeed. The judgments of the Courts below are set aside.

28. Second Appeal is therefore, allowed and the suit is decreed as prayed for by the plaintiff. No costs.